

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Song v. Hong

BEFORE: Justice Moore

COUNSEL: John A. McLeish and Meighan Ferris-Miles, for the Plaintiffs
Barry A. Percival, Q.C., for the Defendants

DATE HEARD: 10 March 2008

Ruling

[1] On consent, and for the purposes of this application, the parties have filed the resumes and written reports of three witnesses sought to be called by the plaintiffs to give opinion evidence on matters within their respective spheres of expertise.

[2] The witnesses in question are Barbara Baptiste, life care planner, Jeffrey Baum, housing expert and Peter Coyte, professor of health economics.

Background

[3] This action arises from a motor vehicle accident which occurred in July of 2002. The plaintiff, Ju Song ("Eugene") was a passenger in a vehicle involved in the accident. Eugene was thrown from the vehicle and suffered various severe injuries which have left her with a constellation of symptoms and complaints of a permanent nature that the parties agree are described as a catastrophic personal injury.

[4] This action proceed to trial before a jury, a trial which has now continued over some 11 days during which evidence has been heard from Eugene, from members of her immediate family and from health care providers who have either assessed or treated Eugene.

[5] To this point, the qualifications of each and every one of the expert witnesses called by the plaintiffs has been conceded by the defendants, albeit not without, in some instances, cross-examination to clarify the nature and extent of the expertise and experience of the witnesses.

[6] Now the plaintiff seeks to adduce evidence from three witnesses who each possess some admittedly relevant expertise and who have had occasion to consider and report upon Eugene's situation for the purpose of quantifying her future needs and costs.

[7] Broadly speaking, the difficulties arising from the evidence to be heard from these three witnesses is twofold: because these witnesses are qualified, trained and experienced in Ontario, their opinions may or may not reflect Eugene's situation as a person who lives and works in Korea and, secondly, the opinions are informed by hearsay evidence.

Barbara Baptiste

[8] From her curriculum vitae, it appears that Barbara Baptiste is a certified life care planner, a Canadian certified rehabilitation counselor, a certified disability management specialist and a registered rehabilitation professional. She is not a medical doctor, a psychologist or any other health care professional certified by an appropriate governing body in Ontario, elsewhere in Canada or in Korea.

[9] Her professional experience includes assessing the community rehabilitation needs of persons who have experienced personal-injury and chronic conditions to develop and coordinate short and long-term rehabilitation plans for individuals of all ages who experience cognitive, physical, behavioral and/or psychological changes.

[10] In the course of her work, she reviews and monitors care plans and performs a liaison function with injured individuals, family members, caregivers, healthcare professionals, workplace/school personnel, funders and referral sources, as needed.

[11] In her work, she provides reports to communicate functional status, employment/education status, rehabilitation needs and associated costs and outcomes and she negotiates funding to implement care plans, as necessary.

[12] From her report of December 12, 2005, it appears that she was retained by plaintiff's counsel to address and document reasonable and optimal predicted needs. [page 1].

[13] In describing the scope of her involvement [pages 2 and 3] she confirms that she met with and interviewed Eugene and her parents at the family residence and South Korea in October of 2005. At that time, Ms. Baptiste observed Eugene participating in her morning routines, meal-time, other daily routines and in both her treatment and school environments.

[14] Ms. Baptiste was assisted by Ms. Mihwa Choi, an occupational therapist who has given evidence in this trial and who served as an interpreter for Ms. Baptiste in Korea.

[15] Ms. Baptiste reports that Ms. Choi also assisted her to an understanding of aspects of the Korean health care system and helped to explain health related concepts to Eugene, her family and members of Eugene's treatment team as well as to Eugene's academic instructors/professors at Seoul Women's University.

[16] While in Korea, Ms. Baptiste met with members of Eugene's community care team in order to help determine long-term, community support needs. In this regard, she interviewed:

- Gyeong-Soo Joung, manager, Department of rehabilitation medicine, Mr. Jaic Kim (treating physical therapist), Ms. Kim (treating occupational therapist) and Dr. Kim (physical medicine and rehabilitation specialist) all interviewed at Bundang Jesaeng General Hospital;
- Dr. Hyun-ik Shin (physical medicine and rehabilitation specialist) of Seoul National University Bundang Hospital; and Dr. Tae Hyon Ha (neuropsychiatrist) of Seoul National University Bundang Hospital;
- Dr. Jung-Hee Kim (professor/instructor, Department of Food and Nutrition) and Ms. Cheon Kyooeng Ae (career counselor), both with Seoul Women's University.

[17] In addition, Ms. Baptiste reports that she conducted research of bibliographic databases with regard to scientific evidence related to cultural context, considering community integration and quality of life following spinal cord injury and mental health impairments. She adds that data specific to South Korea was also reviewed and analyzed.

[18] Throughout her lengthy report of December 12, 2005 and in her supplementary report of January 17, 2008, Ms. Baptiste purports to detail Eugene's injuries, her treatment, her rehabilitation progress, her ongoing pharmacological and rehabilitative needs and provides a variety of medical and other expert opinions, some of which appear to emanate directly from Ms. Baptiste and others she ascribes to one or more of the people who she interviewed in Korea or to the data she reviewed in the course of her research in Korea.

[19] Ms. Baptiste did not append transcripts of her interviews with her Korean interviewees leaving the reader to wonder exactly what she learned from which sources. With the exception of Ms. Choi, it appears that none of the people who Ms. Baptiste interviewed in Korea will be called to give evidence at this trial. It also appears that whatever authorities Ms. Baptiste may have consulted regarding Eugene's situation as a disabled person living in Korea will not be available to the jury as exhibits at this trial.

Jeffrey Baum

[20] From his curriculum vitae, it appears that Mr. Baum operates a renovation company which specializes in accessibility for people with disabilities. He describes his work as involving coordination of housing requirements for disabled individuals and states that his services include needs assessment, design specifications, real estate search, design-build services, project management and follow up with clients to ensure that the environment is compatible with their abilities.

[21] He has lectured on barrier-free design and renovation.

[22] Mr. Baum was retained by the plaintiffs to address housing requirements and options for Eugene. He reviewed medical information and he attended upon Eugene and her family at their home in Korea in October of 2005.

[23] Mr. Baum's report, written in November of 2005, runs to 35 pages plus appendices and it contains:

- a summary of Eugene's housing requirements as they relate to her present and anticipated functional abilities as a wheelchair user;
- a description of Eugene's present accommodation in Bundang, complete with detailed measurements, photographs and architectural sketches; and,
- an outline of the alternative housing options available to Eugene in Bundang and an estimate of the costs associated with providing a suitable housing solution.

[24] In addition to meeting with Eugene, her family, Ms. Choi and Ms. Baptiste, it appears that Mr. Baum informed his analysis of Eugene's present and future housing needs and costs by also involving a local real estate agent, Mr. Jongwi Seo to review Bundang real estate information and he attended at properties listed for sale, accompanied by an interpreter and an (un-named) accessibility contractor from Woon Electronic and Access Co. Ltd..

Peter Coyte

[25] Peter Coyte was awarded a Ph.D. in economics; his thesis was entitled: the economics of Medicare: Equilibrium Within the Medical Community. He is now a professor of health economics in the department of health policy, management and evaluation at the University of Toronto.

[26] In his report of 13 November 2007 he states that he seeks to present a threefold exercise in positive analysis. [Page 1]:

“First, I outline recent financial trends in the performance of the Korean health sector. Second, since there is debate about the fiscal sustainability of the Korean government's ability to continue to fund its commitment to health care, but I briefly highlight health policy initiatives designed to contain expenditure growth. Third, I evaluate the impact of a broad range of health reform initiatives on health expenditures, in general, and those incurred by Ju Song, in particular. Specifically, I render an opinion regarding the rate of inflation in Ju Song's future care costs relative to the general index of price inflation.

[27] For the reasons outlined in his report, this witness seeks to opine that health cost expenditures for Eugene will grow at a rate which exceeds inflation.

Common ground

[28] It is common ground that a witness cannot give expert or opinion evidence unless the court recognizes and accepts the expertise of the witness and the relevance and admissibility of the evidence to be adduced. The parties accept the proposition that an expert is privileged to provide opinion evidence for the assistance of the trier of fact; it is a matter of privilege and not a matter of right.

[29] As I stated in *Marcoccia v. Gill*, 2007 unreported ruling (S.C.J): a plaintiff cannot call evidence to corroborate or for that matter to contest his or her own evidence. Further, an expert is privileged and permitted by the court in appropriate circumstances to give evidence where that evidence is necessary. If one would refer to, for instance, the *Law of Evidence in Canada*, 1999 Butterworth's Canada Ltd., Second Edition, page 619, under the heading "Judicial Discretion" the authors write, and I endorse:

"Although relevant evidence is generally admissible, a trial judge has discretion to exclude proffered evidence if the probative value of the evidence is overcome by its prejudicial effect, the evidence is potentially misleading or its admission consumes an inordinate amount of court time which is disproportionate to its evidential value."

[30] The parties accept that the reason for calling an expert is well described at pages 622 to 623 as follows:

"The expert provides to the court basic information necessary for its understanding of scientific or technical issues involved in the case. In addition because the court is incapable of drawing the inferences on its own from the technical facts presented an expert is allowed to state his or her opinion and conclusions. The expert's usefulness in this respect is circumscribed by the limits of his or her own knowledge"

[31] Generally, the test for admissibility of expert opinion evidence falls to be determined according to four distinct criteria. First, is the evidence necessary to assist the trier of fact? Second, is the evidence relevant to issues to be determined in the case? Third, is the expert properly qualified to give the evidence in question? And fourth, should the evidence be excluded by some rule that would render the opinion inadmissible?

The Positions of the Parties.

[32] The plaintiffs submit that the evidence sought to be adduced from the three witnesses meets a four-part test and should therefore be received and considered by the court.

[33] The plaintiffs assert that an appropriate, comprehensive life care planning exercise, including an analysis of housing needs and costs and an analysis of future care costs within the

context of the Korean economy, involves complicated and technical issues and evidence that must be considered to be beyond the normal experience and ability of the trier of fact, the jury in this case, to comprehend.

[34] The plaintiffs submit that the opinion evidence of each of these three witnesses is clearly relevant to issues of future care needs and costs, issues that will be addressed by questions ultimately put the jury at the conclusion of this case.

[35] The plaintiffs submit that each of the experts possesses the requisite skill, training and experience to be heard to give opinion evidence in their respective fields of endeavor.

[36] The plaintiffs state that there is no applicable exclusionary rule and no reason for this court to exercise judicial discretion to keep the evidence of these three witnesses from the jury.

[37] The plaintiffs also point out that if they are to call each of the people from whom these experts took factual information as witnesses at this trial, the trial would become overly cumbersome.

[38] The defendants contest the necessity for much of the opinion evidence to be heard from these witnesses. Particularly is this so where these witnesses purport to ground their opinions upon facts/opinions of people who will not attend to give evidence at the trial of this action and who cannot be cross-examined upon their evidence, on oath or affirmation, by the defendants.

[39] At this point, there is no explanation for the fact that all or any of the people in Korea from whom these witnesses sourced information have not been called to give evidence as part of the plaintiff's case.

[40] The defendants contest the qualifications of these witnesses to speak to care needs and costs particular to Eugene's situation as a resident of Korea. Whatever expertise these witnesses may possess and apply in connection with people presenting with disabilities and care needs in Canada or in Ontario, in particular, does not translate into the requisite degree of education, training and experience to enable them to opine upon care needs and costs in Korea.

[41] The defendants state that it is not merely an issue of weight, but admissibility and that this distinction is critical, because this is a jury trial. They also state that in the absence of the evidence of the treating physicians, physiotherapists, and occupational therapists, and the evidence of Karen Rucas, an Ontario based occupational therapist who is referred to in her report, Barbara Baptiste is not qualified to give expert opinion evidence on the alleged cost of future medical, rehabilitation, housekeeping and attendant care needs of the plaintiff in Korea.

[42] The defendants add that the plaintiffs rely on some authorities to permit them to lead such evidence from Ms. Baptiste despite the fact that the expert opinion is made on "second-hand" evidence. Justice Haley in *TIT2 Ltd. Partnership* (Tab 7) at paragraphs 24, 25 and 26 makes the important distinction between "second hand evidence" in the "general sense", and "second hand evidence" in the "particular sense". If that "second hand evidence" is not merely statistical, "it

must be proved in the usual way so that the defence has an opportunity to cross-examine upon it.”

[43] The Defendants submit that the opinion evidence of the proposed experts Baum and Coyte are not admissible at this trial.

[44] The witness Baum proposes to provide expert opinion evidence relating to values in the real estate market and in various buildings in Seoul, Korea in 2005, which is based on representations made to him by a Korean real estate broker. That proposed evidence has already been discounted as being unreliable by the father of the plaintiff in his evidence at trial.

[45] The witness Coyte proposes to provide expert opinion evidence relating to the future economic situation and inflation expectations in Korea, when he has no prior involvement with that Country’s economy.

Analysis

[46] The feature that makes this case unique among serious personal injury cases tried before juries in this jurisdiction is that the plaintiff is a Korean national who intends to return to Korea following this trial and make her future, at least her foreseeable future, there. As such, her medical care, therapy, educational endeavors and her personal, family, social and vocational endeavors have been and will continue to be achieved and challenged in her home country of Korea.

[47] For reasons that are altogether unclear, the experts in question have reached out from Canada to Korea and have even physically traveled from here to there to collect information that may be relevant to Eugene’s future care needs and costs issues in this trial. Eugene’s caregivers and, with the exception of her immediate family, her personal, educational and vocational advisers have not come before this court to provide first-hand information to assist the jury.

[48] It appears clear that the three experts in question on this application have required the assistance of Korean interpreters in order to conduct the investigations and interviews that they referred to in their respective reports. This raises issues of accuracy and completeness of information exchanged between these experts and their Korean sources.

[49] More importantly, approaching the development of future care costs and needs evidence in the manner now proposed by the plaintiff's produces some unfortunate side effects. For instance, the Korean sources are not available for cross-examination before this jury. Further, the precise information obtained from the Korean sources has not been made available to the defendants for consideration and/or to be placed before an appropriate expert for critical commentary.

[50] To some extent, it may be an answer to these concerns to conclude, as the plaintiffs do, that the frailties of the facts and the fact finding process should be only relevant in assessing the weight to be attached to the opinions of these experts. *Saint John (City) v. Irving Oil Co.* (1966), 58 D.L.R. (2nd) 404 (S.C.C.).

[51] In *R. v. Lavallee* (1990), 55C.C.C. (3rd) 97 (S.C.C.), Sopinka J. addressed the use of hearsay evidence by a physician in connection with the process by which a diagnosis and treatment decisions may be reached. He stated:

“A physician, for example, daily determines questions of immense importance on the basis of the observations of colleagues, often in the form of second or third hand hearsay. For a court to award no weight to, or to exclude, this sort of professional judgment, arrived at in accordance with sound medical practices, would be to ignore the strong circumstantial guarantees of trustworthiness that surround it....”

[52] In this regard, Sopinka J. was describing evidence “of a general nature which is widely used and acknowledged as reliable by experts in that field”.

[53] In *Ranger Oil v. Ferguson* (1997), 7 C.P.C. (4th) 230 (Alta. C.A.) the court accepted the usefulness of second hand valuation evidence gathered by an experienced oil site valuator according to recognized and reliable practices. The court determined that the data in question was inherently reliable.

[54] In *T1T2 Limited Partnership v. Canada* (1997), 8 C.P.C. (4th) 193 (Ont. Gen. Div.) two engineering firms consulted together in connection with the formulation of a costs and needs analysis relating to life cycles of elevators. The question for the court involved whether the report of findings from one expert report could be included into the opinion of the other reporting expert. The court decided that it could be relied upon, not for the truth of the contents but as evidence of what the expert at trial relied upon in reaching his own opinion.

[55] In part, this application applies to the process by which Eugene’s future care needs and costs should be assessed by the jury. In this regard, there is evidence in this trial regarding the nature and extent of Eugene’s injuries and the challenges, abilities and limitations that she has been left with. That evidence has come from medical records that have been made exhibits and from Canadian healthcare practitioners who have taken the stand at this trial.

[56] Eugene’s caregivers are in Korea. Some of them are medical doctors but there is no suggestion that any of them are licensed to practice medicine in Canada. As such, the opinions of Eugene’s treating doctors cannot be received in evidence by way of a written report. In any event, had they chosen to record and report their findings and opinions in writing, even if their reports could be received, the likelihood is that the defendants would demand an opportunity to cross-examine those doctors upon their opinions on matters within their particular areas of expertise.

[57] Barbara Baptiste is not a medical doctor. Had Eugene’s treating neuropsychiatrist, Dr. Ha, discussed his findings and conclusions with a counterpart doctor in Ontario, perhaps Dr. Charles Tator, neurosurgeon, for example two experts who are knowledgeable in the workings of the human brain might, language issues aside, understand and appreciate their respective points of view. In that event, the Canadian specialist might be heard to opine upon Eugene’s condition

on the basis of evidence that the court may find to be inherently reliable that emanated from a Korean doctor.

[58] To the extent, however, that Ms. Baptiste purports to relay portions of Dr. Ha's findings and opinions in her report the process will not bring with it the same degree of necessity and reliability that the court requires. In fact, on this example, it is not apparent that Ms. Baptiste did anything other than interview the doctor, something any member of the jury may have been equally capable of doing, and report his views on future care needs.

[59] Even if Barbara Baptiste is not accepted as an expert for the purpose of providing opinion evidence on life planning for Eugene in Korea there may be portions of her proposed evidence relevant and admissible at this trial. For example, Dr. Ditor has given evidence that Eugene should continue to use a manual wheelchair. Ms. Baptiste will be experienced in the life cycles and costs of wheelchairs in Ontario. She will not be heard to say that Dr. Ditor is wrong in his recommendations against need of an electric wheelchair. Depending upon the nature and reliability of her inquiries into the cost of manual wheelchairs in Korea, it is conceivable that her evidence, albeit founded in part upon hearsay evidence as to Korean costs, will be relevant and admissible.

[60] So may evidence of Mr. Baum be relevant and admissible notwithstanding that it is founded in part upon information received secondhand from sources in Korea.

[61] Likewise, it is conceivable that Peter Coyte may be found to possess requisite, and relevant expertise in order that he might be heard to give opinion evidence on the Korean economy and the rate of inflation in health care costs that may be anticipated in Korea during Eugene's lifetime. At this point, the analytical approach undertaken in aid of reaching his opinions and the nature and extent of his expertise in Korean economic matters is not clear.

Disposition

[62] This application is allowed, in part and subject to the following orders.

[63] Barbara Baptiste, Jeffrey Baum and Peter Coyte may be called and the plaintiffs may seek orders declaring each of them to be an expert capable of providing opinion evidence to the jury in this case. Each will be called as a witness and questioned on qualifications. To the extent that they are determined to be qualified to provide opinion evidence they will then be heard as expert witnesses.

[64] Even if these witnesses are determined to be experts in a certain field of human activity, their evidence will be led, to the extent that their opinions are not based on personal knowledge, through hypothetical questions. As such, where the factual basis for the opinion is not within the direct knowledge of the witness or did not come to the witness from another expert in the field in a manner that the court may determine to be reasonably reliable, each witness will be asked to assume the facts necessary to support the opinion or opinions of the expert.

[65] If there is no evidence upon which the assumed fact may be determined by the jury, it may be that the opinion of the expert will not be heard. If, however, the court is satisfied that there is some evidence before the court now or that may come before the court through the evidence of the remaining witnesses at this trial, the court may allow the jury to hear the opinion of the expert.

[66] To the extent that facts must be assumed by an expert and proven on the basis of secondhand evidence, the court will hear submissions upon the relevance, admissibility and reliability of such facts before they can be stated to the witness.

Moore J.

DATE: 10 March 2008